TENTATIVE RULING FOR August 18, 2026
Department S22 — JUDGE JANET FRANGIE
(Sitting on Assignment)

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (https://www.sb-court.org) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).
If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2609016

VARTOUHIE GEOVSHANIAN v. SONIA GOULUMIAN

TENTATIVE RULING

Plaintiff's Motion for Preliminary Injunction:

PROCEDURAL/FACTUAL BACKGROUND:

This is a quiet title action. On April 6, 2025, Plaintiff Vartouhie Geovshanian filed a Complaint against Defendant Sonia Goulumian, alleging the following causes of action: (1) Quiet Title; (2) Cancellation of Deed; (3) Fraud; (4) Constructive Trust; and (5) Elder Abuse.

A. Allegations in the First Amended Complaint (FAC):

Plaintiff alleges that in 2009, while residing in Canada, Plaintiff granted her sister, non-party Azkouhie Goulumian, with a limited Power of Attorney ("PoA") in order to help manage Plaintiff's real properties located in the United States. In 2012, Plaintiff purchased the real property located at 7169 Petaluma Drive in the City of Fontana ("Property") as an investment and allowed her sister, non-party Azkouhie Goulumian, and her three children, including Defendant, to occupy the Property, subject to their agreement to pay all property-related expenses. (FAC ¶¶ 1-2, 9-10.)

In 2015, Azkouhie Goulumian executed a gift deed transferring the Property to Defendant, while acting under Plaintiff's PoA, all without Plaintiff's knowledge, consent, or authorization

("Gift Deed"). Plaintiff first discovered the fraudulent Gift Deed in May 2024, when Defendant asserted ownership of the Property during a Facebook audio call with Plaintiff. In June 2025, Plaintiff sent a notarized demand to Defendant requesting her to correct the Gift Deed. However, Defendant responded with threats, including sending an unlawful eviction notice to Plaintiff's home in Montreal, Canada, in November 2025. As a result, Plaintiff has lost title and possession to the Property and has further suffered financial, emotional, and psychological harm. (FAC ¶¶ 11-20.)

B. <u>Relevant Procedural History:</u>

On May 28, 2026, Plaintiff filed a Notice of Pendency of Action ("Lis Pendens").

On July 6, 2025, Defendant's default was entered.

On July 24, 2026, Plaintiff filed an ex parte Application for a Temporary Restraining Order and for Preliminary Injunction, seeking to enjoin Defendant from:

(i) selling, transferring, conveying, assigning, encumbering, mortgaging, refinancing, or otherwise disposing of any interest in the Property;

(ii) recording any deed, lien, mortgage, encumbrance, transfer document, or other instrument affecting title to the Property;

(iii) altering, damaging, substantially renovating, removing fixtures from, or otherwise changing the condition, value, or status of the Property; and

(iv) issuing bad-faith eviction threats and retaliatory legal actions to Plaintiff in Montreal.

(See Ntc. of Motion at p. 2.)

On July 30, 2026, Defendant filed an opposition to the ex parte Application.[i]

On August 3, 2026, the Court denied the ex parte Application but set the matter for regular hearing as a Motion for Preliminary Injunction.

On August 6, 2026, Plaintiff filed a reply.

<u>Decision:</u>

The motion is granted in part and denied in part. The motion is granted to the extent that Plaintiff requests injunctive relief enjoining Defendant from performing the following actions:

a. selling, transferring, conveying, assigning, encumbering, mortgaging, refinancing, or otherwise disposing of any interest in the Property;

b. recording any deed, lien, mortgage, encumbrance, transfer document, or other instrument affecting title to the Property; and

c. altering, damaging, substantially renovating, removing fixtures from, or otherwise changing the condition, value, or status of the Property.

Plaintiff has demonstrated a probability of success on the merits and irreparable harm. The harm to the Plaintiff from the refusal to grant the preliminary injunction outweighs the harm to the defendant from the imposition of the preliminary injunction. (See further (*Continental Baking Co. v. Katz* (1968) 68 Cal.2d 512, 527; *IT Corp. v. County of Imperial* (1983) 35 Cal.3d 63, 69.)

In Defendant's Opposition, Defendant does not dispute that she obtained title to the Property via the PoA. (See Goulumian Decl. ¶ 2.) However, despite asserting that the transfer was valid, Defendant does not address Plaintiff's argument or evidence demonstrating that the transfer was unauthorized. Instead, Defendant simply argues that the Motion should not be granted because Plaintiff cannot show irreparable injury. In support of this argument, Defendant asserts that because Plaintiff has already recorded a Lis Pendens against the chain of title to the Property, it already makes it a legal and practical impossibility for Defendant to sell, transfer, refinance, mortgage, encumber, or otherwise dispose of the Property.

This argument is unavailing. The purpose of a lis pendens is to give constructive notice to potential purchasers and encumbrancers of the pending litigation so that the judgment in the action will be binding on subsequent parties even if they acquire their interest before judgment is actually rendered. (Code Civ. Proc., § 405.24.) It does not legally restrain the owner from conveying or encumbering the property; it merely puts subsequent purchasers or encumbrancers on notice of the of the adverse claim. (*Arrow Sand & Gravel, Inc. v. Superior Court* (1985) 38 Cal.3d 884, 888.) Thus, an interest in the affected property may be transferred subject to the lis pendens, and the transfer is effective unless and until a judgment in the action determines that the transferor had nothing to convey and is free and clear of the interest claimed by the plaintiff in the action unless and until the entered judgment confirms the plaintiff's interest. (3 Miller & Starr, Cal. Real Estate (4th ed. 2026) §10:151, citing *Deutsche Bank National Trust Co. v. McGurk (2012) 206 Cal.App.4th 201, 213-214.)*

The motion is denied to the extent that Plaintiff requests injunctive relief enjoining Defendant from issuing bad-faith eviction threats and retaliatory legal actions to Plaintiff in Montreal. Plaintiff has cited no authority supporting the proposition that the Court may issue injunctive relief affecting matters outside the jurisdiction of the State of California.

In light of Plaintiff's fee waiver, the Court waives the issuance of an undertaking. (*Conover v. Hall* (1974) 11 Cal.3d 842.)

Plaintiff is directed to prepare the Order granting the preliminary injunction and to give notice of ruling.

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[i] Please Note: As Defendant's default has been entered, Defendant as no right to participate in the proceedings until default is set aside. (Devlin v. Kearny Mesa AMC/Jeep/Renault, Inc. (1984) 155 Cal.App.3d 381, 385-386.) However, in quiet title actions, a defaulting defendant is entitled to participate in an open-court evidentiary hearing to determine the merits of the quiet title claim. (Nickell v. Matlock (2012) 206 Cal.App.4th 934, 941, interpreting Code of Civil Procedure section 764.010.) As such, the opposition was nonetheless considered.